

24TRCP00328 24TRCP00328

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C09%2F15%2F2026

Source SHA-256: 065df9435022ca35c511680489975d3bfd94e15ac46c2ccac4d4667cbf7983

Case Number: 24TRCP00328 Hearing Date: September 15, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – September 15, 2026

Calendar No.

PROCEEDINGS

Rombro

& Manley LLP v. Kristin Evans, et al.

24TRCP00328

1.

Rombro &

Manley LLP's Petition to Confirm Arbitration Award

TENTATIVE RULING

Rombro

& Manley LLP's Petition to Confirm Arbitration Award is granted.

Background

Petitioner Rombro & Manley LLP filed

the petition on August 15, 2024. Petitioner and respondents were parties to an underlying arbitration proceeding pursuant to the American Arbitration Association (“AAA”) related to respondent’s breach of the retainer agreement between the parties. On July 31, 2024, AAA arbitrator Robert M. Dawson issued a written arbitration decision awarding petitioner damages in the total amount of \$98,514.04 as against respondents.

Petition
to Confirm Arbitration Award

The procedure by which a prevailing party obtains an enforceable judgment, upon the completion of the arbitration, is to petition to confirm the award. CCP § 1286; *Loeb v. Record* (2008) 162 Cal.App.4th 431, 450.

CCP § 1285.4 states:

“A petition under this chapter shall:

(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

(b) Set forth the names of the arbitrators.

(c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.”

Service of this petition must meet the requirements of CCP § 1290.4. CCP § 1290.4 states:

“(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is

to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision:

(1) Service within this State shall be made in the manner provided by law for the service of summons in an action.

(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service.

(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code." Code Civ. Proc., § 1290.4.

It appears that the arbitration agreement does not provide the manner in which service of the instant petition must be made. Thus, Petitioner must adequately demonstrate that it served the petition and notice of hearing in the manner required under CCP § 1290.4(b) as the respondent has not previously appeared in this action. After difficulty serving respondent in more common methods, eventually, petitioner obtained an order to serve by publication, and recently petitioner filed and served the proof of service by publication.

Petitioner adequately complied with all the requirements of CCP § 1285.4 by setting forth the arbitration agreement, the name of the arbitrator, and a copy of the award. Petitioner filed a proof of service contending that respondent was served the instant petition and notice by publication.

Therefore, the petition to confirm arbitration award

is granted.

Petitioner is ordered to give notice of this ruling.